

ENTITLED: **“AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY MR MEDIUM DENSITY RESIDENTIAL TO MR-2 MEDIUM DENSITY RESIDENTIAL-DEVELOPING FOR A PORTION OF LOT 6, ALL OF LOTS 7 AND 8, AND THE WEST 12 FEET OF LOT 9, BLOCK 2, PLUS THAT ADJACENT 8 FEET OF VACATED ALLEY, COULSON ADDITION, CHEYENNE, WYOMING (LOCATED NORTH OF AND ADJACENT TO RAWLINS STREET, WEST OF MCCANN AVENUE).”**

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 3, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of Lot 6, all of Lots 7 and 8, and the west 12 feet of Lot 9, Block 2, plus that adjacent 8 feet of vacated alley, Coulson Addition, Cheyenne, Wyoming, is hereby changed to MR-2 Medium Density Residential-Developing (See attached Exhibit A).

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Coulson Addition

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00441

SUBDIVISION CODE: CSN

PREPARED BY: Josh Tetzlaff

MEETING DATES: August 3, 2015– Planning Commission
August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Development Department recommends approval of the zone change request from County MR – Medium Density to MR-2 Medium Density Residential-Developing.

PLANNING COMMISSION UPDATE (8/3/15): At its regular meeting on August 3, 2015, the Planning Commission voted to approve the zone change for Coulson Addition.

CITY COUNCIL RECOMMENDATION: The Development Department recommends approval of the zone change request from County MR – Medium Density to MR-2 Medium Density Residential-Developing.

STAFF REPORT

Coulson Addition

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00441

SUBDIVISION CODE: CSN

PREPARED BY: Josh Tetzlaff

MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

OWNER/AGENT: Leonard Golding
3714 Rawlins Street
Cheyenne, WY 82009

307.630.7019

PROJECT: Coulson Addition Zone Change

WORK DESCRIPTIONS: Change from County MR to MR-2

LOCATION:

1. Legal Description: a portion of Lot 6, all of Lots 7 & 8, and the west 12' of Lot 9, Block 2 plus that adjacent 8' of vacated alley, Coulson Addition, Laramie County, Wyoming
2. Location: North of and adjacent to Rawlins Street, west of McCann Avenue
3. Address: N/A

SIZE: Total site: 20,909 SF

CURRENT ZONING: County MR Medium Density Residential

PROPOSED ZONING: MR-2 Medium Density Residential-Developing

EXISTING LAND USE: Single-family residential

PROPOSED LAND USE: Single-family residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Undeveloped	MR-2	City
South	Residential	MR-2	City
East	Residential	County MR	County
West	Residential	County MR	County

EXECUTIVE SUMMARY:

This zone change application is for a property located at 3714 Rawlins Street that is being annexed into the City. This zone change application will change the zone district from County MR Medium Density Residential to MR-2 Medium Density Residential-Developing. The owner of the property is requesting annexation so that he can connect to City sanitary sewer. A zone district of MR-2 would be consistent with the other parcels in the area that are within City limits.

Due to meeting the review criteria of Section 2.1.2.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change, advancing it to the Governing Body.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

PlanCheyenne has designated this property as Urban Residential on the future land use map and is found within the Urban Service Boundary. Within the Urban Residential land use, a desired characteristic according to PlanCheyenne is to connect to City water and sanitary sewer. With the purpose of this annexation being that the property can be connected to City sanitary sewer, this application is in accordance with PlanCheyenne.

SURROUNDING AREA - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The application is consistent with the uses recommended in PlanCheyenne. The application to change to MR-2 is compatible to the surrounding area as it would be changing the zone match the properties within the area that are already within the City.

ZONING: BASIC STANDARDS & USES - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

There are not any plans for redevelopment. The purpose of this zone change is that since property is also being annexed, it must be given a City zone district. The property, already being used as a residential property, is suitable for the MR-2 district should there be any redevelopment in the future.

STREETS & OPEN SPACE - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

As stated, there are no plans for development other than connecting to City sanitary sewer. Should the property redevelop in the in future, it should be able to be developed according to the standards found in Article 4.

ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Since the property is already being used as a residential property, it has the ability to meet the Intent and Applicability statements found in the MR-2 district. There are no design requirements for single family homes found in the MR-2 district.

ZONING: FUTURE DEVELOPMENT - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

This zone change is being submitted due to an accompanying annexation application. Should any redevelopment happen in the future, that future development should be able to meet all applicable standards of the MR-2 district.

Reviewing Agencies w/ Comments:

- Development Department (Josh Tetzlaff) **(Correct Prior to Approval)**
 - o In the vacated alley north of the lot at the northwest corner of the intersection of Rawlins St and McCann Ave, the vacated alley says it is part of Robert's Subdivision. Is this correct as everything else says Roger's Subdivision. Please check and make corrections if needed.

Reviewing Agencies w/o Comments:

- City Engineer (John Hall)
- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)

Reviewing Agencies not Responding:

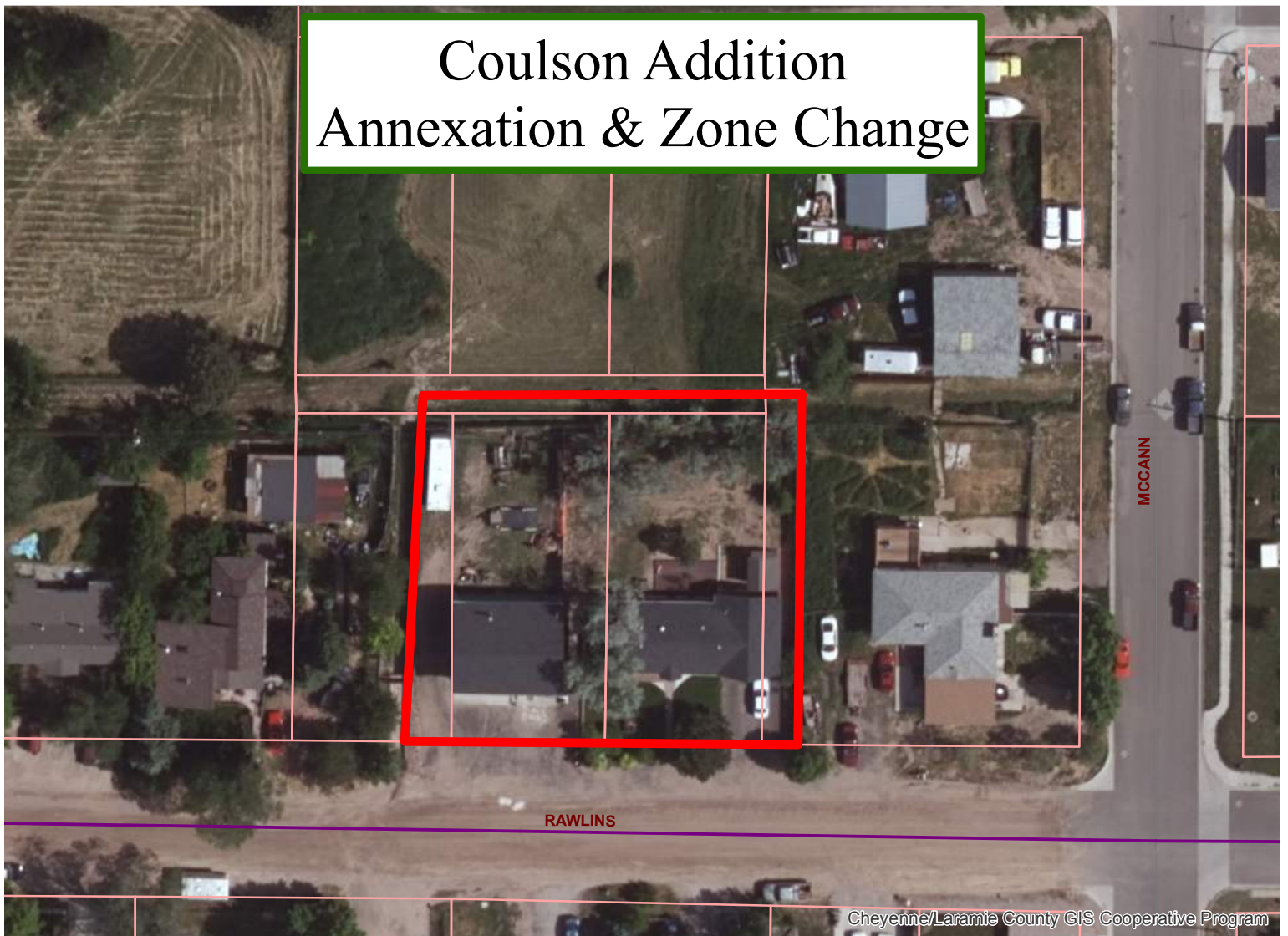
- None

Other Comments Received:

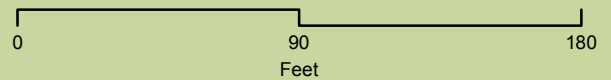
- None

cc: Owner
Agent/Applicant
File

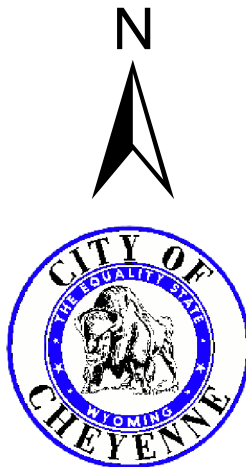
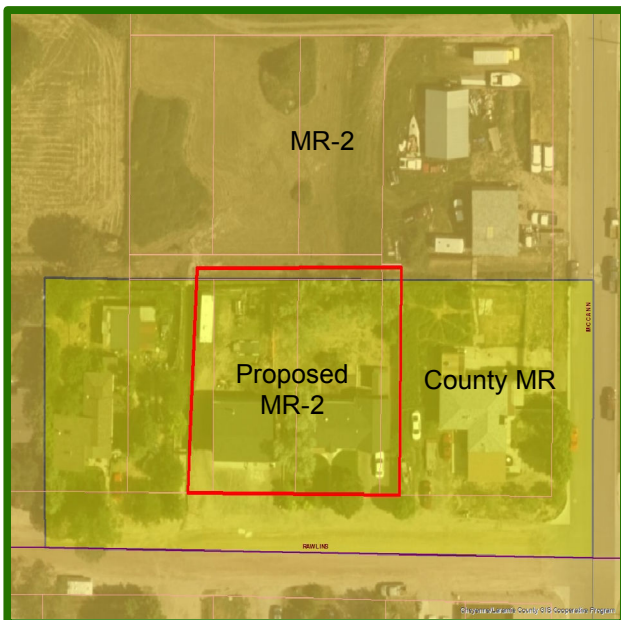
Coulson Addition Annexation & Zone Change



Applicant: Leonard Golding
Application Numbers
Annexation: UDC-15-00440
Zone Change: UDC-15-00441

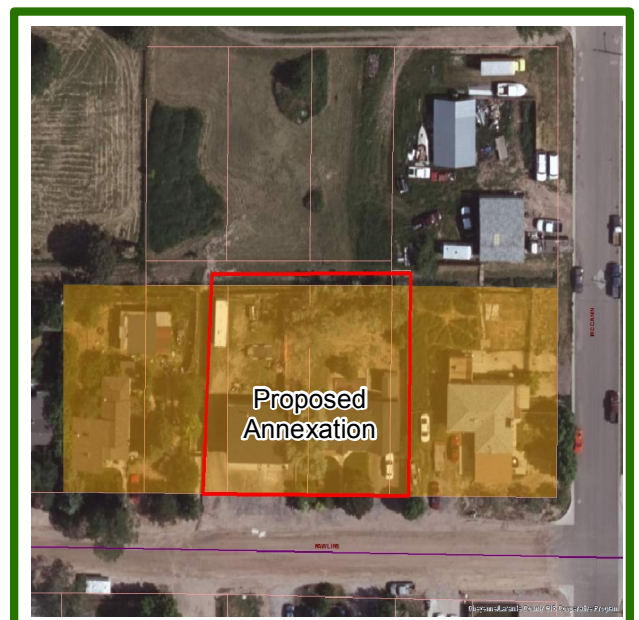


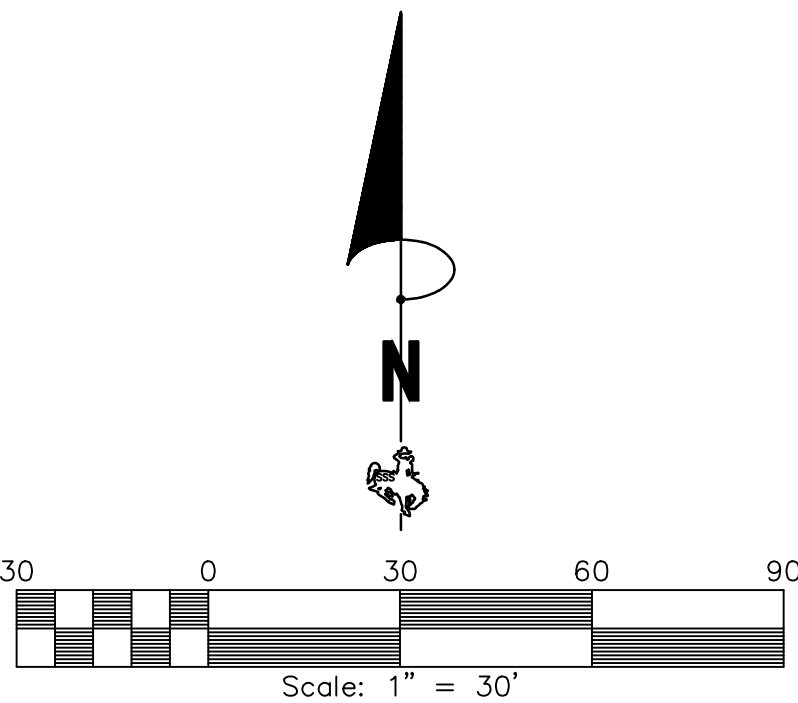
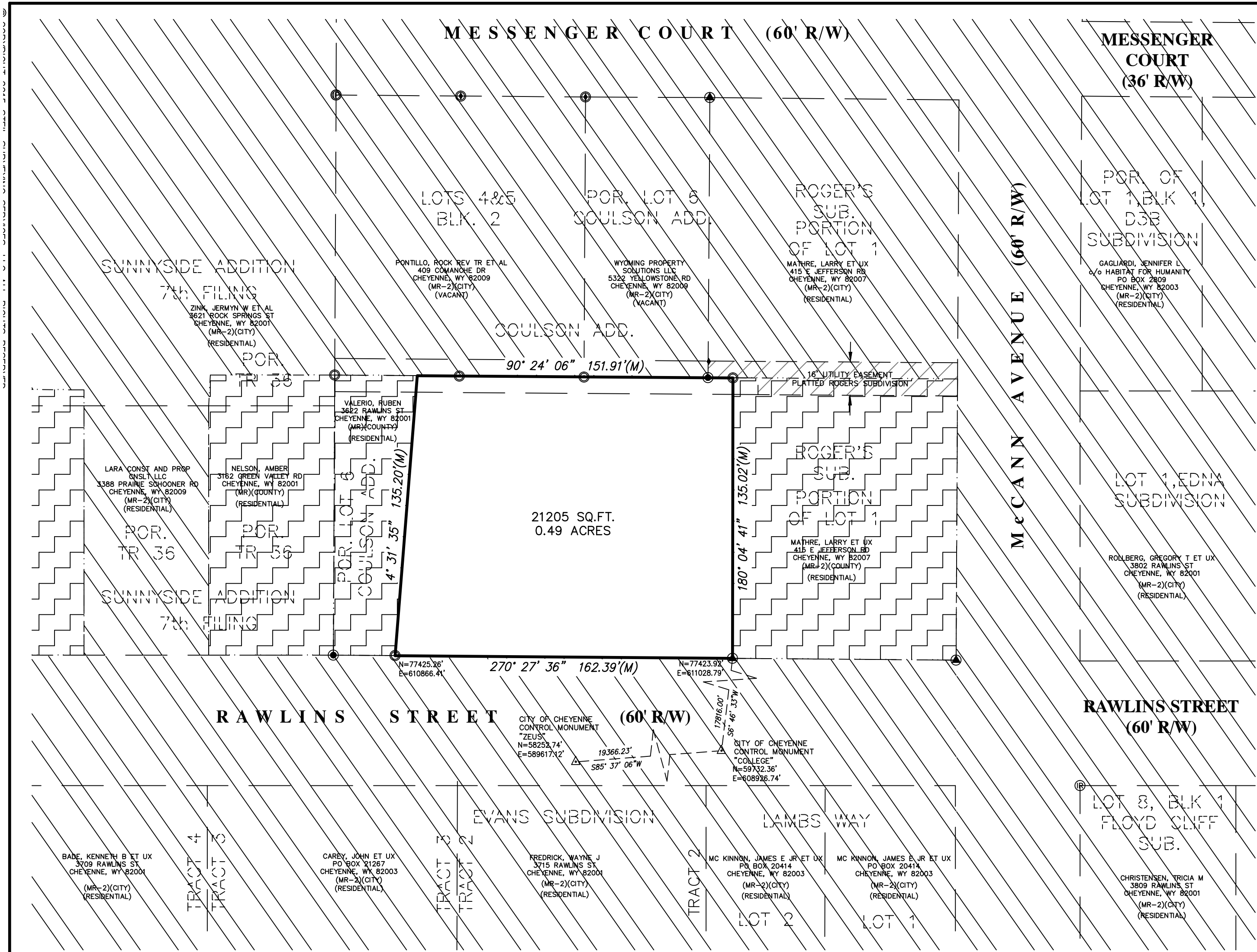
Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Annexation





NOTES

- 1. BASIS OF BEARINGS – CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "COLLEGE" & "ZEUS".
- 2. NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN SPECIAL 100-YEAR SPECIAL FLOOD HAZARD AREA AS SHOWN ON FIRM PANEL NO.56021C1094F, DATED JANUARY 17, 2007.
- 3. WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- 4. ALL UTILITIES TO BE PROVIDED ADJACENT TO PARCEL.
- 5. NEAREST FIRE HYDRANT AT NORTHEAST CORNER OF EXISTING McCANN AVENUE AND RAWLINS STREET.

LEGEND

- SET 5/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ◆ FOUND MAG NAIL
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- (M) DENOTES MEASURED DATA THIS SURVEY
- (P) DENOTES PLAT DATA PER DOWNEY ADDITION

- EXISTING MR ZONING
- EXISTING MR-1 ZONING

ZONING

- EXISTING ZONING MR (COUNTY)
- PROPOSED ZONING MR-2

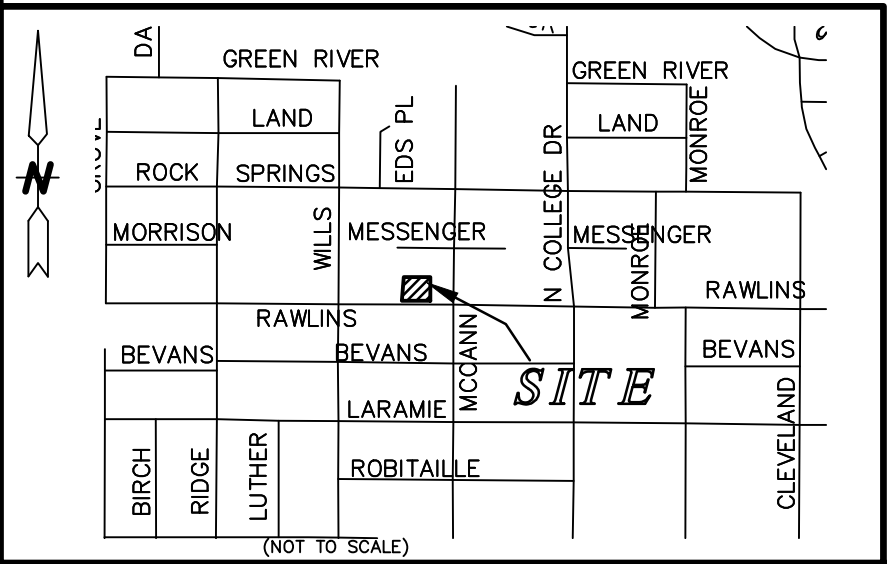
LEGAL DESCRIPTION

A PORTION OF LOT 6, ALL OF LOTS 7 & 8, AND THE WEST 12' OF LOT 9, BLOCK 2 PLUS THAT ADJACENT 8' OF VACATED ALLEY, COULSON ADDITION, LARAMIE COUNTY, WYOMING.

COMPUTATION TABLE

TOTAL SITE AREA	17,268 SQ.FT. (.40 AC.)
STREET R/W	N/A
ESTIMATED TRIPS PER DAY	EXISTING 10 ADT TO CONTINUE
DETENTION AREA	NONE – SEE DRAINAGE WORKSHEET

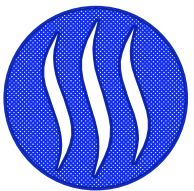
VICINITY MAP



ZONE CHANGE
MAP
FOR

A PORTION OF LOT 6, ALL OF LOTS 7 & 8, AND THE WEST 12' OF LOT 9, BLOCK 2 PLUS THAT ADJACENT 8' OF VACATED ALLEY COULSON ADDITION LARAMIE COUNTY, WYOMING.

PREPARED JUNE, 2015



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